

Justification for Other Than Full and Open Competition, Extension

USDA

Forest Service Region 4

JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION

PROJECT NUMBER: DID10881-002

Agency Name: Forest Service

1. NATURE AND/OR DESCRIPTION OF ACTION BEING APPROVED.

The USDA Forest Service currently leases 25,647 ABOA/30,422 rentable square feet (RSF) of office space at 1206 S. Challis Street, Salmon, ID under lease #1284M892L0411 for the Salmon-Challis Supervisor's Office. The current lease expires 09/30/2025. Approval is requested to negotiate a lease extension with the incumbent Lessor without full and open competition for continued occupancy at this leased location. The procedures for pursuing a lease extension are detailed in GSAR 570.405: Lease extensions.

2. DESCRIPTION OF THE SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS (INCLUDING ESTIMATED VALUE).

The government requires an extension of the current lease for 60 months to commence on 10/01/2025. The estimated cost of this lease extension is [REDACTED] per rentable square feet per year for an annual cost of [REDACTED].

3. IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION.

41 U.S.C. 3304(a)(1): Only one responsible source and no other supplies or services will satisfy agency requirements. This statutory authority is implemented through GSAR 570.405. In accordance with GSAR 570.405, use of the sole source authority is appropriate when the government experiences a delay in acquiring replacement space.

- ☐ The agency occupying the leased space is scheduled to move into other Federally controlled space, but encounters unexpected delays in preparing the new space for occupancy
- ☐ The government encounters unexpected delays outside of its control in acquiring replacement space
- ☐ The government is consolidating various agencies and the contracting officer needs to extend the terms of some leases to establish a common expiration date
- ☒ The agency occupying the space has encountered delays in planning for a potential relocation to other federally controlled space due to documented organizational, financial, or other uncertainties

4. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR NATURE OF THE ACQUISITION REQUIRES THE USE OF THE AUTHORITY CITED.

It is in the best interest of the Government to remain at the current location during the extension period. 570.405 (4) GSA has encountered delays with the new leases action they are working, which necessitates an extension of the current lease.

5. DESCRIPTION OF EFFORTS MADE TO ENSURE THAT OFFERS ARE SOLICITED FROM AS MANY POTENTIAL SOURCES AS IS PRACTICABLE.

In accordance with GSAM 570.106(d) and 570.405, an advertisement is not required for extensions.

6. DEMONSTRATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT WILL BE FAIR AND REASONABLE.

Recent market research conducted by the Lease Contracting Officer in Salmon, Idaho showed the rental rate within the market area ranges from [REDACTED].

Therefore, the anticipated rental rates for this lease extension of [REDACTED] within the current market range for this submarket and are deemed fair and reasonable by the FS Lease Contracting Officer.

7. DESCRIPTION OF MARKET RESEARCH CONDUCTED AND THE RESULTS.

On 06/25/2024, market research was conducted using CoStar. The market research showed the rental rate within the market area ranges from [REDACTED].

8. OTHER FACTS SUPPORTING USE OF OTHER THAN FULL AND OPEN COMPETITION.

Remaining at the current location under a 60-month extension avoids a holdover and allows the Government to continue operations without disruption.

9. LIST OF SOURCES, IF ANY, THAT EXPRESSED, IN WRITING, AN INTEREST IN THE ACQUISITION.

N/A

10. STATEMENT OF ACTIONS, IF ANY, THE AGENCY MAY TAKE TO REMOVE OR OVERCOME ANY BARRIERS TO COMPETITION BEFORE ANY SUBSEQUENT ACQUISITION.

In advance of an existing lease contract's expiration, considerations will be given to allow for sufficient time to conduct a full and open procurement. The Government will consider the time and cost of moving from the existing location, and the time and cost to build out new space when deciding whether it is economically advantageous to stay at the existing building or to undergo a competitive action.

Additionally, consideration will be given to the customer agency's mission and security requirements (if applicable) to include limiting any agency space requirements that may be deemed unduly restrictive and thus favor the incumbent. The Government will remain conscious of the effort to continuously encourage competition when practicable.

11. CONTRACTING OFFICER CERTIFICATION.

By signature on this Justification for Other than Full and Open Competition, the FS Lease Contracting Officer certifies that the award of a lease extension of 60 months for lease #1284M892L0411 is in the Government's best interest and that this Justification is accurate and complete to the best of the [REDACTED] Lease Contracting Officer's knowledge and belief.

LEXIE PITRE Digitally signed by LEXIE PITRE
Date: 2024.10.23 15:03:01 -05'00' Date _____

Lexie Pitre, Lease Contracting Officer

12. PREPARER'S TECHNICAL CERTIFICATION.

I certify that the supporting data used to form the basis of this Justification is complete and accurate to the best of my knowledge and belief.

MALLORY STEFFEN Digitally signed by MALLORY STEFFEN
Date: 2024.10.23 12:32:33 -07'00' Date _____

Mallory Steffen, Realty Specialist

13. APPROVED BY:

SANDI SANDRY Digitally signed by SANDI SANDRY
Date: 2024.10.23 14:10:59 -06'00' Date _____

Sandi Sandry, PPS Leasing Branch Chief

14. APPROVED BY:

WILLIE DAVIS Digitally signed by WILLIE DAVIS
Date: 2024.10.24 09:08:20 -04'00' Date _____

W. Scott Davis, Director of Office of Property & Environmental Management